

The Label and the Lock

*A Threat-Model Argument for How Sex, Safety, and Fairness
Should Be Reasoned About — Without the Spectacle*

Karrick, J.

Principal Architect, Governed-AI Constitutional Systems

Thirsty's Projects LLC — Salt Lake City, Utah

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Abstract. *This is a position paper. It argues a defensible claim and states it plainly: that biological sex is, for the overwhelming majority of human beings, a bimodal biological reality; that this reality is load-bearing in a small number of specific domains — notably full-contact sport and the physical safety of children in unsupervised spaces; and that the public debate over these domains is failing not because one political side is uniquely dishonest, but because all sides are arguing about symbolic labels while the actual enforcement mechanisms go unfunded and undiscussed. The paper makes its strongest case, grounds its factual claims in public reporting, and — because a position worth holding should be able to survive its own opposition — closes by stating the best counterarguments in full. It contains no slurs and no calls for harm. A position that needs those is not yet an argument.*

I. What This Paper Claims, And What It Does Not

Public argument about sex and gender has become almost impossible to conduct, not because the underlying questions are unanswerable, but because the questions are routinely fused together into a single undifferentiated shouting match. Before anything can be argued, the claims must be separated. This paper makes three, and refuses several others.

It claims:

One. Biological sex is bimodal. For the overwhelming majority of human beings it resolves cleanly to male or female, and the genuine exceptions, while real and deserving of dignity, are statistically rare and do not erase the pattern.

Two. This biological reality is load-bearing in a narrow set of domains where physical asymmetry directly produces injury risk or competitive unfairness — most clearly in full-contact sport.

Three. The protection of children in unsupervised public spaces is a legitimate concern, and it is currently being argued in a way that targets a symbolic label instead of the actual enforcement gap, which makes the argument loud and ineffective at the same time.

It does not claim:

That transgender people do not exist, should not exist, or are inherently dangerous. That gender identity is never real or never matters. That people who hold the opposing view are acting in bad faith. That any group should be subjected to ridicule, exclusion from public life, or harm. Those are not arguments; they are heat, and heat is what this paper is written to replace.

A claim worth defending is a claim stated narrowly enough to be tested.

Everything broader than the claim is just the spectacle asking to be fed.

II. The Biological Claim, Stated Precisely

The strongest version of the biological claim is also the most modest one, and the modesty is what makes it hold. Sex in humans is bimodal: the distribution has two dominant peaks, male and female, defined by reproductive anatomy and, in the typical case, by chromosomal and hormonal profile. This is not a fringe position. It is the ordinary working model of human

biology.

Intersex conditions — differences of sex development — are real. They are also uncommon, and the often-cited higher prevalence figures include conditions that most clinicians would not classify as ambiguous sex. The honest summary is this: a small number of people genuinely do not fit the binary cleanly, they are entitled to exactly the same dignity as everyone else, and their existence does not convert a bimodal distribution into a spectrum with no peaks. A rare exception is evidence of a rule, not its refutation.

It is worth being precise about a second distinction, because the entire public argument runs aground on it. Sex is the biological category just described. *Gender*, as the term is used across the social sciences, refers to social role and personal identity. These are not the same variable, and a great deal of public argument consists of one person saying "sex" and meaning chromosomes while another says "gender" and means identity, each convinced the other is lying. They are frequently not lying. They are answering different questions with the same word.

***The biological claim does not need to win the identity debate.
It only needs to be true where physical reality is what is being measured.***

This paper therefore makes no attempt to adjudicate identity. It restricts itself to the domains where the biological variable — not the identity variable — is the one doing the physical work. There are only a few such domains. They are the subject of the next two sections.

III. Where Biology Is Load-Bearing: Full-Contact Sport

Combat sport is the cleanest case available, because in combat sport the asymmetry is not abstract and the stakes are not symbolic. The objective of the sport is the delivery of physical trauma. Sex segregation and weight classes exist in these sports for one reason: measurable physiological asymmetry creates measurable injury risk. Remove the category and you do not remove the asymmetry; you simply relocate it onto the body of the smaller competitor.

The relevant physiological point is about developmental history, not current hormone levels. A competitor who has undergone male puberty acquires, durably, greater bone density, skeletal dimensions, muscle mass, and punching power. Some of these advantages are reduced by later hormone therapy; the skeletal and structural ones are not fully reversed.

This is why testosterone level measured at the time of a bout is an incomplete metric for combat-sport eligibility: it captures the current state and misses the developmental history that already built the frame.

This is a medical position, not only a political one

A 2024 paper in a sports-medicine journal, authored in part by a chief medical officer of a state athletic commission, addressed this directly. Its conclusion was that because a transgender woman boxer has typically already completed male puberty before her career begins, testosterone alone fails to ensure a fair and safe bout, and that until better metrics exist it is medically inadvisable to have transgender athletes box cisgender opponents.

The same paper — and this is the part a careful advocate must quote alongside the first part, because leaving it out would be exactly the selective spectacle this paper opposes — also affirmed that transgender boxers have the right to fight, and that protecting them from workplace discrimination is something we should all support. The medical position is not "exclude these people." It is "this specific pairing, in this specific sport, is not currently safe, and the burden is on the sport to find a metric that makes it safe."

A documented case

In a 2014 mixed martial arts bout, the fighter Tamikka Brents suffered a concussion, an orbital bone fracture, and required seven staples to the head, in the first round, against a transgender opponent. Brents, herself an unusually strong athlete, said afterward that she had never felt so overpowered. This is one documented case, not a statistical body of evidence, and it should be presented as exactly that. But it is a real instance of the abstract asymmetry producing a concrete injury, and it is the honest example to cite.

A note on accuracy, because accuracy is the whole currency of a position paper. The most globally televised recent boxing controversy — the 2024 Olympic case in which an Italian boxer abandoned a bout after forty-six seconds — is frequently cited in this argument and should not be. The athlete in that case was assigned female at birth, has always competed as a woman, and there is no public evidence that she is transgender; the "failed gender test" claim originated with a boxing body that had been stripped of Olympic recognition for governance failures and never produced documentation. Citing that case as a transgender-athlete case is factually wrong, and using a wrong example is how a real argument gets discredited by association. The Brents case is real. Use the real one.

***In a sport whose purpose is head trauma, "fairness" is not an abstraction.
It is the difference between a competitor going home and going to a hospital.***

IV. The Bathroom Question Is A Threat-Model Question

The restroom argument is the loudest front in this entire debate, and it is the one where almost everyone — on every side — is reasoning about the wrong object.

Begin with the legitimate concern, because it is legitimate. A parent who does not want a grown stranger with predatory intent in an unsupervised space with their child is not a bigot. That concern is sound, and an argument that begins by sneering at it has already lost the parent it most needed to reach. Hold the concern still and analyze it the way a security architect analyzes any access problem.

The threat model

A public restroom is an uncontrolled-access space. There is no checkpoint, no credential, no verification, no enforcement at the door, and there never has been. Now ask the only question that matters: what stops a person genuinely intent on harming a child from entering that space?

The answer is not the sign. A predator does not require an identity category, a self-declaration, or a permission slip. He requires an unsupervised door, and the door is already unsupervised. He could walk in before any modern gender debate existed, and he could walk in under any policy any side has proposed. The sign on the door has never been the mechanism preventing his entry, because the sign enforces nothing. It is a label, not a lock.

The sign on the restroom door is a notice, not a barrier.

A notice deters the law-abiding. It has never once stopped the dangerous.

What actually protects a child in that space is, and always was, three things: an accompanying adult, the presence of other people, and supervision. That is the real lock. It is unglamorous, it costs genuine effort and money, and it cannot be won on television — which is precisely why almost no one is arguing about it.

Why the debate targets the label instead of the lock

Because the label is free and the lock is expensive. Changing or defending a sign costs nothing, generates engagement, and produces the feeling of having protected children. Funding actual supervision — staffed family facilities, single-occupancy options, attendants, real building design — costs money and effort and produces no viral footage. A debate naturally migrates toward its cheapest, loudest front. That is not a left failure or a right failure. It is a failure of incentives that both sides are subject to equally.

The conclusion follows cleanly, and it belongs to neither political team. If the genuine objective is child safety, the productive demands are for single-occupancy and family facilities, for supervision, and for building design that does not rely on an honor-system label as its security model. Those measures protect a child from a predator regardless of that predator's claimed identity — which is the entire point, because the predator's claimed identity was never the variable that mattered.

V. The Symmetry Most Advocates Refuse To State

A position paper earns its credibility in the paragraphs its author would rather skip. Here is one.

The argument in Section IV cuts in a direction many of its loudest proponents will dislike. If the threat model is taken seriously — if it is genuinely true that uncontrolled access is the danger and the label is irrelevant — then the transgender person using the restroom quietly is, statistically, not the threat, and never was. The data on who actually harms children does not point at that category. It points at access, familiarity, and the absence of supervision. An argument built honestly on the threat model cannot also be used to cast an entire population as the danger, because the threat model itself says they are not it.

This is the cost of reasoning instead of performing. A genuine threat-model argument protects children better *and* declines to scapegoat a minority, because both of those results fall out of the same honest analysis. An argument that protects children but requires a scapegoat to function was never a threat-model argument. It was the spectacle, wearing the concern for children as a costume.

If your safety argument stops working the moment it stops blaming a group, it was never a safety argument. It was the blame, looking for a justification.

VI. The Strongest Counterarguments, Stated In Full

A position survives by meeting its opposition at full strength, not by meeting a weakened cartoon of it. The following are the best arguments against the claims of this paper, stated as their most capable proponents would state them.

Against the sport claim

That "transgender athletes" is not one category but many, and that an athlete who socially and medically transitioned before puberty does not carry the developmental advantages described in Section III; that a blanket rule therefore over-includes. That the number of transgender athletes in elite combat sport is extremely small, and policy built on a handful of cases risks excluding many to address few. And that sport already tolerates large natural physical asymmetries — height, reach, fast-twitch genetics — without segregating by them, which raises a fair question about why this particular asymmetry is treated as uniquely disqualifying.

Against the bathroom claim

That while the threat-model logic is sound, the lived consequence of label-based exclusion still falls hardest on transgender people, who face documented harassment and danger in restrooms, and that a paper focused on the abstract threat model can underweight that concrete, asymmetric harm. That "just build single-occupancy facilities everywhere" is a real cost that in practice often does not get funded, leaving exclusion as the only policy actually implemented.

Against the biological framing itself

That foregrounding biology in public policy, even accurately, can function in practice to deny social recognition to transgender people in the great majority of contexts where physical asymmetry is genuinely irrelevant; and that the line between "the few domains where biology is load-bearing" and "everywhere" is contested terrain, not a settled boundary.

These are serious arguments. This paper's response is not to dismiss them but to define its own scope against them: it claims biology is load-bearing in a *narrow* set of domains, it explicitly affirms the dignity and safety of transgender people, and it argues for enforcement mechanisms — single-occupancy facilities, supervision — that protect children *without* requiring exclusion. Where the counterarguments are strongest is precisely where this paper agrees with them: outside the narrow load-bearing domains, the biological variable should not be the one driving the decision.

VII. Conclusion: Argue The Lock

The position of this paper, stated once more and plainly: sex is bimodal; that fact is load-bearing in a small number of domains and irrelevant in most others; full-contact sport is the clearest domain where it is load-bearing, and even there the medical community frames the issue as a safety problem to be solved rather than a population to be condemned; and the restroom debate is a threat-model failure in which all sides argue about a label while the actual lock — supervision and access control — goes unfunded.

None of this requires contempt for transgender people, and a version of this argument that relies on contempt is both worse morally and weaker tactically, because contempt is the single easiest thing for an opponent to point at in order to discredit everything attached to it. The strongest form of this position is the calm one. The calm one is also the true one.

***Stop arguing the label. Fund the lock.
Everything else is spectacle — and spectacle has never once protected a
child.***

— Karrick, J.

Founder, Thirsty's Projects LLC

Principal Architect, Governed-AI Constitutional Systems

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Sources & Note On Method

Factual claims in this paper draw on public reporting and published literature, including: the position of ringside and sports-medicine physicians on transgender participation in combat sport (MOJ Sports Medicine, 2024, and the Association of Ringside Physicians position statement); contemporaneous reporting on the 2014 MMA bout involving Tamikka Brents; and reporting by NBC News, PBS, AP, and others on the 2024 Olympic boxing controversy, including the International Olympic Committee's statements on eligibility and the disputed status of the International Boxing Association. Figures and findings are summarized for argument; readers are encouraged to consult the primary sources directly and verify each independently.

Method note: this is a position paper. It argues one side, by design. It is written to be defensible, not neutral — but defensibility, unlike mere conviction, requires stating the opposition at full strength, which Section VI does. A reader who finishes this paper still disagreeing has done nothing wrong; they have simply weighed the counterarguments differently. That is what argument is for.

Published independently under Thirsty's Projects LLC, Salt Lake City, Utah. This paper contains no slurs, no calls for harm, and no claims about any named private individual. A position that required any of those would not yet be an argument.